Exhibit "A"

PPS Package Proposal # 7

June 17, 2026

This Agreement is an amendment to the 2023-2026 collective bargaining agreement ("the collective bargaining agreement") between School District 1J, Multnomah County, Oregon, Portland Public Schools ("PPS") and the Portland Association of Substitute Teachers ("the Association").

Recitals:

- In light of the significant budgetary constraints identified for the current and next school year, the parties have agreed to the limited changes outlined below to the collective bargaining agreement through June 30, 2027.

The Parties therefore agree as follows:

* * * * * * *

For this limited-term Agreement, PPS Package Proposal #5 includes the following:

Article 7 - Substitute Rights
Article 8 - Work Hours and Work Days
Article 13 - Duration

ARTICLE 7 – SUBSTITUTE RIGHTS

A. Physical Examinations

Physical examinations of substitutes shall not be required. However, the District may require that the substitute provide medical documentation that they are medically and physically able to perform the job duties of a substitute.

B. Nondiscrimination

In matters of wages, hours and employment relations, or any other matter covered by this Agreement, the District agrees to follow a policy of not discriminating against any substitute on the basis of race, color, national origin, ancestry, sex, age, weight, height, marital status, religion, disability, sexual orientation, gender identity, lawful off-duty political activity or associations, membership or non-membership in the Association or participation in its activities, the fact that the substitute's residence is outside the District, association with another person within a class or with a status listed in this paragraph, or as otherwise provided by School Board policy. However, this provision shall not be construed to prevent the following:

1. District participation in programs conducted in an effort to increase opportunities for historically underserved groups, subject to the provisions of this Agreement.

2. Distinctions resulting from a bona fide occupational requirement reasonably necessary to the normal operation of the District, including, but not limited to, distinctions due to the physical requirements of the employment, lack of adequate facilities to accommodate both sexes, or other distinctions authorized by law including retirement requirements.

3. Consequences of District policies pertaining to assignment of spouses both employed by the District if one is an administrative or supervisory employee.

4. It is the intention of the parties that the interpretation given to this Article shall be consistent with the proper interpretation of the provisions of the Oregon Fair Employment Practices law contained in ORS 659A. A grievance alleging violation of this article may not be appealed to arbitration if the alleged discrimination is based on one or more legally protected classes.

C. Non-reprisal for Grievances

A reprisal shall not be taken against a substitute in response to their right to file a grievance as provided in this Agreement.

D. Academic Freedom

A substitute shall have the same Academic Freedom rights as provided in the PAT Teachers' Contract when the substitute is responsible for lesson plans. Examples include when lesson plans are not provided by the classroom educator or when students finish the planned lesson early.

E. Student Grades, ~~and~~Discipline***, and Health Procedures***

1. When the substitute is responsible for grading, and issues student grades in accordance with District policies, a supervisor shall not change them unless a substantive reason exists. This provision shall not be interpreted to allow a substitute to assign grades in any manner which deviates from general District-wide practices.

2. A substitute shall have the same rights in administering student discipline and student health procedures as the classroom educator for whom they are substituting. The building discipline plan shall be included in the substitute building folder at each site and such plan shall conform with District policies and regulations.

F. Personal Injury Benefits and Property Loss

1. The District shall reimburse substitutes for loss or destruction of personal property, excluding vehicles, under the following circumstances:

a. When the loss is a result of any assault on the substitute's person suffered during the course of employment.

b. When the substitute has exercised reasonable care to protect their personal property.

c. When use of personal property for instructional purposes has been approved in writing by the building administrator and the substitute has exercised reasonable care to protect such property.

2. Reimbursement shall be at replacement cost (not to exceed actual cost) less any insurance or worker's compensation reimbursement. Reimbursement shall not be made for losses of less than five dollars ($5.00) or that portion in excess of four hundred dollars ($400.00) and shall not be made when carelessness or negligence on the part of the substitute was evident. The substitute shall cooperate and support the District in its investigation and resolution of any reported loss. The District will provide assistance in attempting to investigate and/or reclaim other stolen or damaged personal property including automobiles.

G. Liability Insurance

The District shall provide, on a fully paid basis, bodily injury, liability and property damage insurance coverage, to the limits carried by the District for the use of automobiles owned, leased or hired by a substitute while in the normal course of their duties as an employee of the District. This coverage shall apply only as excess insurance over and above other valid and collectible liability insurance carried by the substitute. The District may require as a condition to this coverage that

before the vehicle is used on District business, the substitute provide a valid driver's license and proof of insurance showing that they have at least the minimum amount of insurance required to license a vehicle in the State of Oregon. The District will reimburse the substitute for any deductible cost the substitute is required to pay, as a result of an on-duty accident, not to exceed two hundred fifty dollars ($250.00). Reimbursement will not be made if the substitute is convicted of or admits to driving under the influence of intoxicants or with a suspended license.

H. Safety

1. Building Conditions

a. A substitute shall have the right to refuse to expose themself to immediate danger created by unsafe working conditions when such danger threatens ~~substantial~~ ***considerable*** bodily injury or would be a significant health hazard to the substitute. The substitute shall give notice of the condition to their supervisor and shall be subject to assignment to another location or duty while the condition is being investigated and/or corrected.

b. The District recognizes the responsibility to make every reasonable effort to enhance the security of building and grounds as may be required through the use of necessary lighting and other safety precautions. The District will post a notice when non-routine cleaners, paints, sealant, and other chemicals are to be used at the work site.

2. Personal Safety of Substitutes

a. An allegation that a student has committed assault or battery upon a unit member shall result in the removal of the student from the responsibility of the unit member pending administrative investigation of the incident. The administrator shall exercise appropriate progressive discipline. If the investigation shows battery did occur and the unit member so recommends, the student will not be returned to the affected member's responsibility.

b. Any student making a serious or menacing threat of harm to the person, property or family members of a substitute shall be immediately subject to appropriate discipline in accordance with the Students' Rights and Responsibilities Handbook.

c. Student behavioral records shall be accessible to the affected substitute. School officials will set up procedures so that information about students with records of violence including weapon violations will be available, in accordance with the law, to members who "need to know" as a result of an assignment to teach or supervise the student.

d. Any student found to have committed assault or battery upon a unit member shall be immediately subject to appropriate discipline in accordance with the Students' Rights and Responsibilities Handbook. However, there shall be a minimum of five (5) days suspension for a threat (assault) and mandatory expulsion for the remainder of the year for battery. The Superintendent may modify the disciplinary consequences on a case-by-case basis.

e. Substitute educators working with students ~~and in hard to reach locations~~, shall have functioning Voice Over Internet Protocol (VOIP) device or other communication device (e.g. walkie-talkie) access.

f. If a substitute has classroom management concerns, substitute educators may request school staff support in the substitute's classroom. Staff support may be provided as available.

g. Any case of assault upon a substitute while acting within the scope of their duties shall be promptly reported in writing to the building administrator who shall forward a copy to the appropriate Central Office Administrator for investigation and resolution.

3. School Expectations

a. Professional educator-provided ~~substitute plans~~ ***materials*** will include class list(s) or caseload(s) with relevant behavioral or medical needs. This includes a schedule of IEP services required for the day(s) the professional educator is out, including service minutes, with specific directions that include the relevant academic and behavioral needed medical protocols required to provide the special educator instruction to the student.

b. School climate plans will be available to substitute educators.

c. To the extent possible, substitutes ~~will~~ ***shall*** be notified of scheduled safety drills.

I. Personal Life of a Substitute

The personal life of a substitute is not an appropriate concern of the District, except as it affects the substitute's fitness for or performance of their duties.

J. Keys ***and Electronic Badges***

Whenever possible, substitutes shall have access to keys ***and all electronic badges*** necessary for their assignment in a building and shall be accountable for safeguarding keys in accordance with District regulations. Building administrators are strongly encouraged to determine, and have available, the necessary number of extra keys available for substitutes based on the day with the most regular educator absences in the previous school year. If there are not enough keys, the administrator must request additional keys.

K. Class Lists

The school office must provide substitutes with one printed attendance list that does not need to be submitted to the school office.

L. Substitute ***Site*** Report Form

The Site Report Form is a data-gathering tool meant to ensure continued improvement of working conditions for substitutes.

1. The District and the Association shall use a mutually agreed-upon electronic Site Report Form for use by substitutes to identify those buildings which do not provide building information, up-to-date attendance lists, keys, secure locations for personal belongings, and/or other information or tools necessary to the substitute teaching assignment.

2. The Human Resources department shall review submitted Site Report Forms and promptly work with site administrators to ensure that substitutes are provided with needed materials and information. The Human Resources department shall, upon request, provide this information at substitute contract administration meetings.

3. No reprisal shall be taken against a substitute for exercising their right to file a Site Report Form, as provided in this Agreement.

M . The Substitute Folder

A substitute folder contains the necessary items listed below:

a. Class Lists: The school office ~~must~~ ***shall*** provide substitutes with one printed attendance list that does not need to be submitted to the school office.
b. ***A printout that includes a guest password.***
c. ***A map of the building.***
d. ***A schedule of periods taught by day for the assignment.***
e. ***Staff phone numbers.***
f. ***Hall pass policies, including times allowed to use and where students may go with the pass.***
g. ***Information concerning if, when, and how substitutes are allowed to write passes for students to leave the classroom to go to other areas of the school such as counselors' offices, administration office, library, and other teachers' classrooms.***
h. ***Student health information, where applicable, risks, and emergency treatment directives. (Example: Hazardous allergies, exemptions from strenuous activities, etc.)***
i. ***How to access and utilize classroom computers, projectors, speakers, and all electronic devices.***
j. ***QR code for the Site Report Form.***
k. ***Instructions to utilize the printing software used in the building and if the access is separate from the building access badge.***

Additional information can be found on the school's website or on the Portland Public Schools (PPS) website. To find school policies, visit the School Climate section on the school website. For additional printing instructions, visit the IT Department webpage.

ARTICLE 8 – WORK HOURS & WORK DAYS

A. The work day for full-day substitutes shall start fifteen (15) minutes before the student day and end fifteen (15) minutes after the last regular student period, but shall not be less than seven (7) hours.

B. Substitutes will be called for work at least one-half (1/2) day at a time. Half days shall be no more than half the full day substitute schedule for the individual school.

C. Administrators may not direct a substitute to switch to an assignment other than the one they have accepted, but an administrator may request such a change which a substitute may accept.

D. When a substitute is paid the extended rate of pay pursuant to Article 12.B, the workday and schedule for full-day substitutes shall be the same as that for classroom educators.

E. If a substitute accepts an assignment that was entered into the absence management system in error ~~by the Human Resources department and reports, or if~~, or the substitute is not needed after reporting to work, ~~or if the substitute shall be paid for a half- day but shall be subject to a different PAT assignment by the building principal or supervisor. If another need for a substitute opens in that building during the day, the substitute may be placed in that PAT assignment(s) and.~~ ***or a job is cancelled sixty (60) minutes or less before the scheduled start time of the assignment and reports, the substitute shall be paid for a half-day. The Building Administrator will have the discretion to utilize that substitute or reassign the substitute to an unfilled assignment.*** If the substitute declines the PAT assignment they will not be paid.

F. The general times adhered to shall be outlined in the Portland Public Schools Schedule of School Starting/Ending Times (Substitute Work Day Schedule). These times shall coincide with the contractual workday for substitutes. A non-standard assignment (e.g. a half-day long, midday assignment) shall count as a full-day assignment for purposes of determining insurance eligibility per Article 11.C.

G. The building principal shall ensure that arrangements are made for restroom breaks for unit members in the same manner as such breaks are provided to the educators for whom they are substituting.

H. Substitute teaching in regularly-scheduled night school and year-round school shall be counted as half-day or full-day as outlined 8.A and B for the purpose of calculating benefits eligibility.

I. The parties agree that orientation and professional development for substitutes is a desired operational goal. The District will provide paid orientation for substitutes. When funds are

available, the District will provide a one-half day paid professional development for substitutes. The Contract Administration committee shall provide input on the elements of the program and its implementation.

J. The District may provide trainings to a limited numbers of substitutes in the substitute pool to improve those substitutes' abilities to succeed in particular areas or programs. Substitutes shall be paid for such trainings at the hourly rate (Daily Rate of Pay divided by 7.5).

The District may incorporate completion of such trainings into the job assignment process, provided it does not interfere with absent educators' ability to offer jobs directly to their preferred substitute.

K. Substitutes must complete the District's annual mandatory trainings to be eligible to accept substitute assignments and remain on the substitute list. After the Human Resources department verifies completion of such trainings, the substitute will be paid for the trainings at the per diem hourly rate (Daily Rate of Pay divided by 7.5).

L. Any substitute may engage in asynchronous District approved trainings during the classroom educators planning period, time permitting.

M. Minimum Workday Requirements

A substitute who does not work a minimum of twenty (20) days per school year may be removed from the list, providing there was adequate work available during that school year. The requirements of this subsection M do not apply to District regular part-time educators.

N. When the District creates a summer list of substitutes, it may establish a reasonable deadline by which substitutes may submit their names for consideration. Only substitutes who volunteer their names by the deadline shall be on the summer list.

O. However, a substitute on either list may remove themselves from further assignment during a period of a lawful work stoppage by regular teachers by notifying the District in writing.

P. Two worked student contact half days are equal to one full student contact day for the purposes of calculating renewals and insurance eligibility.

ARTICLE 13 – DURATION

A. Except as otherwise provided elsewhere in this Agreement or in this Article, this Agreement shall become effective the day following ratification by the parties and shall remain in effect through June 30, 20~~26~~***27***.

B. The District agrees to print 200 additional copies as needed of this Agreement to be delivered to the Association to provide to substitutes. A copy of the Agreement shall also be provided to any newly hired substitute, upon request.

C. This Agreement shall take precedence over any District policy, rule or regulation, which may be inconsistent with the Agreement.

D. During its duration, the Agreement may only be modified by the mutual consent of the Association and the District.

E. Should any part of this Agreement be declared illegal by a court or agency of competent jurisdiction, the remainder of the Agreement shall continue in effect and the parties shall enter into negotiations the section declared to be illegal within thirty (30) days of such decision